

25PSCV01351 25PSCV01351

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Case Number: 25PSCV01351 Hearing Date: September 18, 2026 Dept: H

Taylor

v. Delgado, et al., No. 25PSCV01351

(Consolidated

with Case No. 25PSCV01447)

ORDER

ON EX PARTE APPLICATION TO CONTINUE TRIAL DATE

Pending

before the Court is Defendants Jake Delgado and Platinum Rigs & Solutions, Inc.'s ("Defendants'") ex parte application to continue the trial date to January 11, 2027, with fact discovery to remain closed and expert discovery (with the exception of designation of experts), to be tied to the continued trial date. For the reasons stated herein, the Court grants the application without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

"A

party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request . . . by a noticed motion or an ex parte application. . . , with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered." (Cal. Rules of Court, rule 3.1332(b).)

"Although

continuances of trials are disfavored, each request for a continuance must be

considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . . (3)

The unavailability of trial counsel because of death, illness, or other excusable circumstances[.]” (Cal.

Rules of Court, rule 3.1332(c).)

“In

ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: (1)

The proximity of the trial date; (2)

Whether there was any previous continuance, extension of time, or delay of trial due to any party; (3)

The length of the continuance requested; . . . (8)

Whether trial counsel is engaged in another trial; (9)

Whether all parties have stipulated to a continuance; (10)

Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11)

Any other fact or circumstance relevant to the fair determination of the motion or application.” (Cal.

Rules of Court, rule 3.1332(d).)

Here,

the Court determines that Defendants have made an affirmative showing of good cause requiring a trial continuance. In reaching this conclusion, the Court observes that both parties' lead counsel are unavailable for trial on the current trial

date, that the parties have stipulated to the trial continuance, and that the length of the requested trial continuance is reasonable. Accordingly,

the application is granted.

The

trial date currently set for October 5, 2026 is CONTINUED to January 12, 2027, at 10 a.m. The Final Status Conference currently set for September 23, 2026, at 10 a.m. is CONTINUED to January 6, 2027, at 10 a.m. Fact discovery shall remain closed; expert discovery, with the exception of designation of experts, shall track the continued trial date.

The

parties are ordered to file and serve trial documents in accordance with the

Court's trial order (included in the September 10, 2026 order on Plaintiffs' ex parte application). (See 9/10/2026 Order on Ex Parte Application to Preclude Defendants' Supplementally Designated Expert from Testifying at Trial.)

Defendants
are ordered to provide notice.